TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 26, 2018
MINUTES

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Kent Prause, Julia Copeland, Lynnette Lynes
Also: Claude Tackett, attorney for Board

Mr. Belton called the meeting to order at 6:01 pm and reviewed the procedures with the public.

1. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Carrier seconded the motion. All in favor.

Mr. Wolff moved for approval of the agenda. Mr. Cowden seconded the motion. All in favor.

Mr. Belton administered the oath to those speaking.

2. Public Comment & General Correspondence

Mr. Tommy Goldstein, referred to item 3A and expressed concern with the Board's procedure. He stated that there is corporate counsel that can advise the Board on proper procedure in addition to guidelines published by the Municipal Association of SC (MASC) regarding procedures. He suggested that there was testimony that was received of staff after the public comment was received and there was no chance for a rebuttal from the applicant. He suggested that the procedure should be reviewed and amended if desired.

There being no other comments, Mr. Belton continued with the agenda.

3. Business

A. Request for Rehearing, Case A-3-17, I'On Subdivision, Phase 5, Sections D, E, and F., TMS 535-06-00-582, The applicant requests a rehearing of Case A3-17 in accordance with Article IV Hearing Procedure Section 9 Rehearing. The Board may grant a rehearing of an application which has been dismissed or denied upon written request filed with the secretary within

fifteen (15) days after delivery of the order accompanied by new evidence which could not reasonably have been presented at the hearing, or evidence of a clerical error or mutual mistake of fact affecting the outcome.

▶ Mr. Carrier and Mr. Rubin recused themselves as they were not at the original meeting.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Goldstein reviewed the request with the Board. He stated that the ordinance includes the conjunction "and" contrary to what Mr. Prause stated at the meeting in December 2017. He stated that there now is pending ordinance change to correct this issue, which makes it appear that this was not an error but purposeful misdirection. He suggested that this was an error and therefore, should be allowed a rehearing of the case.

Mr. Belton asked if the rehearing was received within the allowed timeframe. Mr. Robertson answered in the affirmative. Mr. Belton stated that conducting a rehearing is a new request for him and he is not sure of the exact procedure. He asked if the Board would like to move into discussion or have input from legal counsel at this time.

▶ *Mr. Wolff moved to go into executive session. Mr. Cowden seconded the motion. All in favor.*

The Board convened into executive session at 6:21 pm and reconvened at 6:35 pm.

Mr. Belton stated that the issue is the applicant's request for a rehearing.

▶ *Mr. Wolff moved for approval of the rehearing request based on the staff report and to allow the applicant to speak and rebut the information of the Zoning Administrator. Mr. Wood seconded the motion. All in favor.*

B. Case A-3-17, l'On Subdivision, Phase 5, Sections D, E, and F., TMS 535-0600-582, Pending approval of D. Business (1) Rehearing request. Appeal of the

Zoning Administrator's decision regarding the interpretation and application of the Town's Critical Line Buffer Ordinance §156.201 stating that it does not apply to I'On Phase 5, Sections D, E, and F and the decision is contrary to Zoning Code sections 156.201 and 156.048.

Mr. Kent Prause, Zoning Administrator, reviewed the issue in question of language contained in the ordinance through a PowerPoint presentation (attachment 1).

Ms. Lea Ann Adkins, applicant, reviewed the request with the Board. She stated that the ordinance is clear. She suggested that the "and" in its intended location between 2(h)(2) and (3) would be exempt from the buffer ordinance. She stated that her interpretation of the ordinance is that the I'On Phase 5 preliminary plat and sketch plan that was approved prior to September 2000 would be exempt from the ordinance for a period of two years. She suggested that the buffer would still be in effect and should be upheld. She stated that Mr. Prause indicated that the American Legal Publishing had an error in the publishing of this ordinance and distributed a screen shot of the ordinance to the Board (attachment 2). She stated that her position is that the ordinance should apply to I'On Phase 5.

Mr. Shawn Willis, attorney for I'On Assembly, suggested that the actual ordinance as previously presented might not be the signed effective ordinance. He distributed a copy of what he believes the actual effective ordinance is for the Board (attachment 3). He suggested that the 2012 amendment added a fourth exemption and the conjunction "and" between items 3 and 4. He suggested that the intent of the ordinance is to follow through the development process to a final plat.

Mr. Michael Purcell, 55 Hopetown Rd and member of the I'On Board, stated that they have consulted with a horticulturalist from the Greenery, and engineers, to ensure that any changes to the buffer were being done in accordance to the Town and I'On requirements. He stated that a legal attorney was consulted as well. He stated that the walking trail is available to the public.

There being no further comments, Mr. Belton closed public comments.

Mr. Goldstein agreed with Mr. Purcell that I'On is a great neighborhood and the buffer and pathway a great amenity. He stated that the sketch plan was approved in March 2000 and the preliminary plat was approved in August 2000. He stated that the exemption expired in September 12, 2000. He suggested that the "and" is the crucial point. He stated that the Town has done a tremendous job in protecting the environment. He suggested that the Town and the applicant want the same outcome.

Mr. Belton stated that the Board did receive the rehearing motion and application from the applicant. He stated that the lead-in language for all versions of the ordinance is the same and that there are multiple exceptions noted for all versions previously cited.

Mr. Duke asked Mr. Goldstein to address the issue of "exemptions" being plural and the significance of it. Mr. Goldstein answered that he agrees that there are multiple exceptions cited in the ordinance. He stated that the original sketch plan for I'On Phase 5 was approved in March 2000, which is prior to the September 12, 2000 effective date. He suggested that the issue is that the ordinance allows a two-year period or exemption period so that the developer can complete the final plat process.

Mr. Belton asked if there is one exemption or more than one exemption. Mr. Goldstein answered that there is one exemption with several conditions.

Mr. Duke asked why the ordinance does not reference "conditions" instead of exemptions. Mr. Goldstein answered that this was to protect the developer from having to resubmit for approval. He stated that the approved plat includes language regarding the critical line buffer and referred to note #18 on the plat and incorporates the ordinance. Mr. Belton asked if the plat references the ordinance section with the exemptions. Mr. Goldstein answered in the affirmative.

Mr. Belton asked if Mr. Goldstein's position is that there is only one exception. Mr. Goldstein answered in the affirmative and stated that there is one exception with multiple conditions or requirements.

Mr. Duke asked when the final plat was approved. Mr. Goldstein answered that the final plat was approved and recorded June 4, 2003. Mr. Duke asked if the

preliminary plat was approved before September 2000. Mr. Goldstein answered in the affirmative. Mr. Duke asked if the "and" only applies to item 2 and 3. Mr. Goldstein answered in the affirmative. Mr. Duke asked if 1 is linked to 2 and 3. Mr. Goldstein answered in the negative.

Mr. Prause suggested that all three exceptions are linked together. He suggested that the intent was for the ordinance to have all three exceptions to be separate and distinct. He referred to §10.05 defines that "and" and "or" can be interchanged if the sense requires it. He stated that his position is that the exceptions should be read as "or" to be separate and independent of each other.

- *Mr. Wolff moved for denial of the appeal based on the staff report and definition of the use of "and" in the ordinance as stipulated in §10.05 of code of ordinances. Mr. Cowden seconded the motion.*

Mr. Wolff suggested that the intent of the statute is to have three separate items. He suggested that in this section the "and" could and should be interpreted as "or".

Mr. Belton asked if these were each independent exceptions. Mr. Wolff answered in the affirmative. Mr. Belton asked if the lead-in language supports that these exceptions would be separate. Mr. Wolff answered in the affirmative.

- *Mr. Wolff moved to amend his motion to include the finding of fact that the lead-in language to the statute indicates that these are separate and individual exceptions. Mr. Cowden seconded the motion. All in favor.*

- *Mr. Belton called for a vote on the amended motion. All in favor.*

C. V-6-18, 161 Cooper River Dr., TMS 514-00-00-323, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-0203 and §156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Brian Blatt, owner, reviewed the request with the Board and distributed a copy of the application for the Board to review. He stated that there were no objections to the pergola being installed during the five years it was constructed. He stated that the HOA has approved the pergola being installed.

Mr. George Gates, 312 Cooper River Dr, stated that a recent request at the January 2018 meeting was denied. He stated that there are no minutes from the HOA indicating that this was approved by the HOA Board. He suggested that the height should not be exceeded. He stated that the HOA regulations requires approval prior to obtaining approval from the Town. He suggested that this would be visible from the street and the bridge and would be a detriment to the building. He expressed concern with the ability to get the materials to the roof without causing damage to the building. He suggested that the pergola might not meet wind resistant requirements.

There being no further comments, Mr. Belton closed public comment.

▶ *Mr. Duke moved for denial based on findings that it would not prohibit or unreasonably restrict the use of building. Mr. Wolff seconded the motion. All in favor.*

D. A-1-18, 43 Joggling St., TMS 535-06-00-759, Appeal of Administrative decision regarding §156.224 (A). Applicant contends that mitigation is not required for removal of a tree that poses a hazard to a habitable structure, due to disease, or to damage not caused by the property owner.

▶ Mr. Robertson read an email from the applicant requesting deferral of this item.

▶ **Motion:** , **Action:** Defer, **Moved by** Barry Wolff, **Seconded by** Stephen Wood.

▶ **Vote:** Motion carried by unanimous roll call vote (**summary:** Yes = 7).

Yes: Barry Wolff, Bobby Carrier, David Rubin, Glyn Cowden, Joseph Belton, Stephen Duke, Stephen Wood.

E. V-7-18, 1009 N. Shem Drive, TMS 535-15-00-010, Appeal from the strict application of §156.007 DEFINITIONS, BUILDING LINE (INCLUDES SETBACK)

to provide a front yard variance of 5 feet 8 inches and a rear yard variance of 5 feet 5 inches.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Carl Berry, applicant, reviewed the request with the Board.

Ms. Shelly Scruggs, 948 North Shem Dr, stated that she is in support of the request. She suggested that the front of the home should be from North Shem Drive. She suggested that the request would be more in keeping with the character of the neighborhood.

- Mr. Michael Jacob, 1017 North Shem Dr, stated that he is in favor of the request and suggested that the request is consistent with the neighborhood.

Ms. Patricia Smith, 602 Atlantic St, suggested that the request would be more in keeping with the character of the neighborhood. She suggested that the previous setbacks should be utilized.

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked if the site plan on page SP3 would require a variance. Mr. Robertson answered in the affirmative and stated that the house would be non-conforming. Mr. Wolff asked if SP4 was granted, could the home be renovated. Mr. Robertson answered in the affirmative and stated that SP4 provides less buildable area than SP3. Mr. Wolff asked if less buildable area would be provided if the current setbacks were applied. Mr. Robertson answered that they are requesting a reduction in buildable area.

Mr. Duke suggested that the four criteria for approving a variance has not been met, particularly that the use of the property would not be restricted or prohibited. Mr. Carrier agreed.

Mr. Belton asked what justification was provided by the applicant. Mr. Robertson read this portion of the application and staff comments for the Board. Mr. Belton stated that corner lots are particularly “quirky” and application of the required setbacks can be over burdensome for these lots. He stated that the lot pre-dates the changes to the ordinance.

Mr. Duke asked if the question on prohibition of use of property was included in the applicant's application.

Mr. Cowden asked the amount of the encroachment. Mr. Robertson answered that it would be 5'5" and 5'8".

Mr. Belton asked the applicant on how he meets the criteria regarding prohibited use of the property. Mr. Berry answered that if the variance was not approved, then a portion of the house would need to be removed. He stated that this would also mean that the house would not conform with the character of the neighborhood. He stated that they would like to utilize the property as originally intended.

- *Mr. Wolff moved for approval of the request based on the findings of staff comments and that it would unreasonably restrict the use of the property; they would not be able to make changes to the existing structure without demolishing a portion of the home. Also, it would be a benefit to the neighborhood. Mr. Rubin seconded the motion. Motion passed on a 5 to 2 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Carrier and Mr. Wood opposed.*

The Board convened for a short break at 8:01 pm and reconvened at 8:07 pm.

F. V-8-18, 557 Klein Street, TMS 532-09-00-107, Appeal from the strict application of §156.132 (C)(2) to allow maintenance of existing setback encroachment for accessory structure of 1 foot 3 inches side encroachment and 5 inches rear yard encroachment.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Robert Tallarico, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if the Board can condition the variance with regard to height and footprint. Mr. Robertson answered in the affirmative and stated that the approval would be based on the plan presented.

▶ *Mr. Wolff moved for approval of the request with the condition that the footprint nor the height increase or extend; and based on the staff report. Mr. Rubin seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Carrier, Mr. Rubin, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wood opposed.*

G. V-9-18, 731 Hills St., TMS 532-06-00-103, Appeal from the strict application of §156.224 to encroach into required tree protection zone.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton recused himself due to a conflict.

Mr. Peter Malanos, applicant, reviewed the request with the Board. He distributed a copy of a letter from an arborist with Bartlett Tree Service for the Board to review (attachment 4).

There being no comments, Mr. Wolff closed public comment.

Mr. Carrier asked if the variance is to allow access within the tree protection zone. Mr. Malanos answered in the affirmative.

Mr. Duke asked if the applicant would adhere to the recommendations outlined by Bartlett Tree Service. Mr. Malanos answered in the affirmative.

Mr. Wolff asked for staff's recommendation. Mr. Bernard answered that the survey was completed in 2007 and a house was located on the property. He stated that there has been the opportunity for eleven years of root growth. He expressed concern with formerly having a single-story home, with the new home being two story. He suggested that the house being in proximity to the tree could cause damage to the foundation as well.

Mr. Carrier suggested that none of the standards have been met. He stated that there are no extraordinary conditions.

Mr. Wolff stated that he understands staff and Mr. Carrier's concerns, but suggested that this is a well-thought plan. He suggested that if the applicant is

willing to take the risk and build the house, then it should be approved. He suggested that based on the number of trees on the lot.

- *Mr. Carrier moved for denial based on the findings that it does not meet the criteria required for approval. Mr. Duke seconded the motion. Motion failed on a 2 to 4 vote with Mr. Carrier and Mr. Duke in favor; Mr. Wolff, Mr. Rubin, Mr. Cowden, and Mr. Wood opposed.*

- *Mr. Cowden moved for approval of the request based on the findings that the applicant would be protection the tree. Mr. Rubin seconded the motion.*

- *Mr. Duke moved to amend the motion to include the condition that the applicant fulfill the protection recommendations as outlined by Bartlett Tree Service. Mr. Rubin seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Carrier, Mr. Rubin, Mr. Duke, and Mr. Wood in favor; Mr. Cowden opposed and Mr. Belton abstaining.*

- *Mr. Wolff called for a vote on the amended motion. Motion passed on a 5 to 1 with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Duke, and Mr. Wood in favor; Mr. Carrier opposed and Mr. Belton abstaining.*

H. V-10-18, 236 Indigo Bay, TMS 560-12-00-116, Appeal from the strict application of §156.303 (C) Development Table for R-1 Zoning to allow an approximately 6 feet or 20% encroachment into the required 30 feet front yard setback.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. David Rann, architect for owner, reviewed the request with the Board.

Mr. Wolff asked about accessibility and how the suite would be accessed. Mr. Rann answered that this would be a second bedroom suite on the first floor for senior living. He stated that the existing bathroom is located in this area.

Mr. Duke asked how this unreasonably restrict the use of the property. Mr. Rann answered that a master suite could not be built if the variance is not granted. Mr. Duke asked if the property is restricted if the variance is not granted. Mr. Rann answered in the negative.

Mr. Carrier asked if the property has always been a corner lot. Mr. Rann answered in the affirmative.

Mr. Belton asked about staff's comment on this being an illegal lot. Mr. Robertson answered that the lot does not meet the dimensional lot requirements. He stated that the request is before the Board for approval to make the lot a legal lot.

Mr. Duke asked if two variances would be needed. Mr. Robertson answered in the affirmative and stated that it currently is considered an illegal lot.

Mr. Cowden asked if the 26 oak tree would be preserved. Mr. Robertson answered in the affirmative. Mr. Cowden asked if the tree could be removed. Mr. Robertson answered that if the lot was platted prior to April 2000 and the tree was in the buildable area, the tree could be approved for removal by staff; if the lot was platted after April 2000, then a variance would be needed to remove the tree. He stated that the basis is that this lot is not a legal lot because it does not meet the dimensional lot requirements. He stated that in addition, a variance would be needed in order to encroach into the setback.

Mr. Wolff asked if two variances are needed or can it be included in one motion. Mr. Robertson answered that it could be handled in one motion.

Mr. Duke asked if the lot is approved, then it would be a legal lot of record. Mr. Robertson answered in the affirmative. Mr. Duke asked if a variance would still be needed for the setback encroachment. Mr. Robertson answered in the affirmative because the lot would not be non-conforming.

Mr. Belton asked for clarification on the 20% non-conforming rule. Mr. Robertson answered that staff can grant a 20% variance if the lot was established prior to 1979.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Cowden moved for approval of the request. Mr. Wood seconded the motion. Mr. Duke seconded the motion. Motion passed ona 5 to 2 motion with*

Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Carrier and Mr. Wood opposed.

I. V-11-18, 832 Coleman Blvd., TMS 532-03-00-090, Appeal from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow 20 on-site parking spaces.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Todd Richardson and Mr. Trey Sadalik reviewed the request with the Board.

There being no comments, Mr. Belton closed the public comment.

Mr. Wolff asked if the use has been determined. Mr. Richardson answered in the negative.

Mr. Carrier asked how many parking spaces cannot be accommodated. Mr. Richardson answered that the site is approximately eleven spaces short of being in compliance. He stated that if calculated at 1 space per 100-200 sqare feet, then 20 spaces would be required.

Mr. Duke stated that 39 spaces are required for a restaurant use. Mr. Richardson answered in the affirmative and stated that the Urban Corridor Overlay District UC-OD allows a reduction. Mr. Sadalik stated that they have been in contact with the neighbors to see if shared parking is an option. He stated that the neighbors are not opposed to the request.

Mr. Belton asked if the second floor was not used for patron use, could the parking requirements be met. Mr. Richardson answered in the affirmative. Mr. Robertson stated that the second floor could not be used for customers, but could be used for office space and storage.

Mr. Richardson asked if the kitchen space could be considered non-patron space.

Mr. Belton asked the reason for the parking requirements. Mr. Robertson answered that the parking is meant to allow parking for patrons and staff. He stated that it is based on square footage and the type of use.

Mr. Wolff asked if a reciprocal agreement between an adjacent business could be used to satisfy the parking requirement. Mr. Robertson answered in the affirmative, but the adjacent business would have to meet their parking requirement in addition to meeting the partner business parking requirements and the agreement would have to remain in place while both business were in operation.

Mr. Carrier asked if the variance was denied and a future shared parking agreement was in place, would they meet the parking requirements. Mr. Robertson answered in the affirmative and stated that a shared parking agreement could be approved by staff.

Mr. Duke asked if a different type of use could utilize the property as it currently exists with the existing parking. Mr. Richardson answered in the affirmative, but stated that a restaurant use would be the best fit for the UC-OD.

Mr. Wolff suggested that opening a restaurant without sufficient parking would be detrimental to the restaurant. He suggested that the requirements for a variance has not been met.

▶ *Mr. Carrier moved for denial of the request based on the findings that the request does not meet criteria for approval of a variance. Mr. Wolff seconded the motion. All in favor.*

4. Approval of Final Orders

The Board deferred signing final orders.

There being no further business, the meeting adjourned at 9:37 pm.

Submitted by,
L. Lynes
BOZA03262018